EX TEMPORE

THE SHERIFF OF ZIMBABWE
versus
SIMBARASHE KADYE
and
THE TRIANGLE PENSION FUND-THE MONEY PLAN
and
HIPPO VALLEY ESTATES PENSION FUND

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 27 January 2026 and 2 February 2026

Interpleader Proceedings

T Gonzi, for the Applicant
C T Tinarwo, for the Claimant.
F Mahere, for the 1st and 2nd Judgement Creditors.

DEME J: On 27 January 2026, I dismissed the Claimant's claim with costs. In particular, I ordered as follows:

> "1. The Claimant's claim to the immovable property which appears on the notice of attachment dated 18 March 2025, which was placed under attachment in execution of Order in HCH5449/23 be and is hereby dismissed.
>
> 2. The above-mentioned property attached in terms of the notice of seizure dated 18 March 2025 issued by the applicant be and is hereby declared executable.
>
> 3. The Claimant shall pay the Judgment Creditor's' and the Applicant's costs of suit on an ordinary scale."

I will now proceed to supply the reasons for the order of 27 January 2026. The Judgment Creditors obtained judgment against Tinashe Nhete, Classique Project Management (Pvt) Ltd and N- Frasys (Pvt) Ltd (hereinafter called "the judgment debtors") in case number HCH5449/23. The Judgment Creditors, consequently, instructed the Applicant to attach the immovable property described in the Claimant's interpleader affidavit as the undivided share 4.0352 share number 5 in Stand 1020 Strathaven Township of Stand 219 Strathaven (hereinafter called "the property").

Upon attachment of the property, the Claimant laid claim to the property. It was averred by the Claimant that he bought the property from the 2nd Judgment Debtor at the price of US$85 000 on 31 May 2021. The Claimant further alleged that the 2nd Judgment Debtor acknowledged having received the full purchase price. The Claimant attached the agreement of sale and acknowledgment of receipt for the purchase price to his pleadings.

It was averred by the Claimant that the 2nd Judgment Debtor signed the power of attorney and declaration by the seller to facilitate the transfer of the property. The Claimant also affirmed that he effected some improvements at the property. He further alleged that he is now in occupation of the property.

The Claimant claimed that the conveyancers are finalising the transfer process of the property in his favour. He attached to his pleadings a draft deed of transfer. According to the Claimant, the attachment of the property will cause irreparable prejudice to himself.

The matter was opposed by the Judgment Creditors. According to the Judgment Creditors, the property is registered in the name of the 2nd Judgment Debtor, which is the current owner of the property. The Judgment Creditors argued that the Claimant can only claim personal rights against the 2nd Judgment Debtor. The Judgment Creditors affirmed that the agreement of sale alleged by the Claimant cannot be enforced against third parties. Mr. Mahere, through oral submissions, submitted that the property was vacant at the time of attachment, contrary to the assertions by the Claimant. Reference was made to the Writ of Execution. Mr. Tinarwo insisted that the Claimant is in occupation of the property.

The simple issue requiring resolution by this court is whether the Claimant has, on a balance of probabilities, managed to prove special circumstances warranting a departure from the established principle of ownership of immovable property.

It is clear that ownership of immovable property is established through registration with the office of the Deeds Registries. Reference is made to Section 14 of the Deeds Registries Act [*Chapter 20:14*], which provides that:

> "Subject to this Act and any other law—
>
> (a) The ownership of land may be conveyed from one person to another only by means of a deed of transfer executed or attested by a registrar;
>
> (b) Other real rights in land may be conveyed from one person to another only by means of a deed of cession attested by a notary public and registered by a registrar:
>
> Provided that attestation by a notary public shall not be necessary in respect of the conveyance of real rights acquired under a mortgage bond."

A Claimant claiming the immovable property not registered in his or her name ought to prove special circumstances. Reference is made to the case of *CBZ Bank Ltd* v *Moyo*[1] where the Supreme Court held that:

> "Special circumstances exist where a purchaser has failed to have the property registered in his name, when he and the seller have demonstrated a clear intention to effect transfer and when there was no legal impediment to such transfer or the impediment does not justify the refusal to grant protection to the purchaser.
>
> The first respondent purchased and paid the full purchase price for the property in August 2010. It is common cause that the first respondent acted promptly to secure registration of title by paying the transfer fees and obtaining tax and rates clearance certificates. It is further common cause that the first respondent, in terms of the contract of sale was entitled to take vacant possession 3 months after the date of payment of the purchase price, that is, from November 2010. When the appellant served summons against Nompiliso Maposa, the first respondent was already residing at the property in question, where service of the summons was effected.
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> The transfer could not be registered because Lizhibowa Real Estate (Pvt) Ltd, a creditor of one of the sellers, had registered a caveat on the title deeds of the property. The caveat was registered after the first respondent was already in possession of the property and a day before the first respondent's transfer papers were filed in the Deeds Registry. The first respondent had done all that a purchaser is required to do to get transfer."

According to the Applicant, the property was vacant at the time of attachment. The Applicant made, in the Writ, the following remarks:

> "The premises are vacant and they are going through renovations. No movable goods were located"

I have no reason to doubt the remarks of the Applicant who is an officer of this court. In my view, she has no reason to lie against the Claimant. Occupation is one of the special circumstances to be considered by the court if the Claimant is to be protected. The Claimant failed to tender satisfactory evidence that he was in occupation of the property at the material time. On this basis, the Claimant failed to establish one component of the special circumstances considered by the court.

Further, the Claimant was not able to tender evidence for practical steps that he took in order to have the property transferred into his name. Despite the allegation that the transfer was being finalised by the alleged conveyancers, he failed to furnish the court with the evidence for the payment of transfer fees. This demonstrates that the Claimant did not harbour any clear intention to have the property transferred into his name. On this additional

[1] SC17/18.

reason, the Claimant failed to satisfy a further step, which is taken into consideration by the court when assessing whether the Claimant has established special circumstances.

It is apparent that the 2nd Judgment Debtor acknowledged that it received the purchase price on 19 May 2021. Reference is made to page 35 of the record. The record demonstrates that the agreement attached to the pleadings was signed on 31 May 2021. Reference is made to page 45 of the record. It is not clear what was being paid for by the Claimant before signing the agreement. Mr. Tinarwo attempted to supplement evidence over the bar to the effect that the Claimant paid the purchase price before the signing of the agreement of sale. This submission was not supported by the averments of the Claimant. The Claimant did not explain this irregularity through the pleadings before the court. The alleged agreement of sale does not recognise that the purchase price was paid in advance. Clause 3 of the agreement provides that:

> "The full purchase price for the property shall be paid in United States Dollars and the sum of US$85,000.00 (eighty-five thousand Dollars only) excluding VAT as follows:
> 3.2 the full purchase price will be paid to the seller by no later than close of business on the date of the agreement on condition that:
> 3.2.1 There are no caveats registered against the property.
> 3.2.2 There are no impediments to transfer of the stand to the purchaser.
> 3.2.3 The property was subdivided which subdivision was approved by the municipality.
> 3.3 Notwithstanding the fact that the purchaser has paid the full purchase price, ownership of the property shall only pass from the seller to the purchaser upon transfer of the property."

According to the agreement, the purchase price was payable on the date of signature of the agreement. The date for the payment of the purchase price is a critical component of any agreement of sale. This, in my view, cannot be overlooked by the parties to the agreement. This aspect cannot escape the minds of the parties to the agreement. For this reason, I am of the view that the Claimant's allegation that he purchased the property is a hollow assertion not supported by any piece of evidence. In my view, the purported agreement of sale is a fabricated transaction meant to frustrate the execution of judgment.

The Claimant also averred that, at the material time, he was effecting improvements at the property. Reference was made to the Writ where the issue of renovations was mentioned by the Applicant. According to the Claimant's version, he was in occupation of the property despite some improvements being effected. However, the Applicant established that there was

no movable property at the site on the date of attachment. This can only imply that the property was vacant. The Claimant, in my view, sought to mislead the court in this connection.

In the circumstances, I saw it prudent to dismiss the claim with costs upon realising that the claim was unmerited. The Claimant failed to establish special circumstances as contemplated by the court in the case of *CBZ Bank Ltd* v *Moyo supra*. The Claimant did not plead the special circumstances in his interpleader affidavit and opposing affidavit. Further, the Claimant did not plead any legal impediment that prevented the finalisation of the transfer of the property into his name. Thus, I was motivated by the aforesaid reasons to make the decision in the manner I did.

DEME J…….

Dube-Banda, Nzarayapenga &Partners, Applicant's Legal Practitioners.
Zimudzi & Associates, Claimant's Legal Practitioners.
Gill, Godlonton & Gerrans, Judgement Creditors' Legal Practitioners.